

Court No. - 3

Case :- WRIT - C No. - 16788 of 2017

Petitioner :- Shyam Lal And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shiv Poojan,Raj Kumar Srivastava

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

Heard learned counsel for the petitioners and Shri Baleshwar Chaturvedi for the respondents.

Both the petitioners obtained separate electricity connections of total 7.5 H.P. for running a tube-well in the rural area.

It is contended that the petitioners were required to be paid fixed charges of Rs.750/- per month and ever since they obtained the connections, have regularly paid the same. It was only on 16.12.2015, a bill was issued showing arrears of Rs.52,757/- and 94,564/- respectively against the petitioners.

Aggrieved by the same, they made an application under clause 6.5 of the Electricity Supply Code, 2005 before respondent no. 3. Alleging non-action on the said representation, the petitioners have approached this Court.

Shri Baleshwar Chaturvedi appearing for the respondents fairly states that, in case, any such representation has been made or even if petitioners make a fresh representation with respect to their grievances before respondent no. 3, he shall proceed to consider and decide the same expeditiously.

Considering the facts and circumstances, we dispose of the writ petition by giving liberty to the petitioners to make independent separate representation with respect to their grievances before respondent no. 3 within two weeks from today with the further direction to the said authority that, in case, any such representation is made, he shall proceed to consider and decide the same in accordance with law by a reasoned and speaking order within a period of six weeks from the date of making of such representation.

For a period of 8 weeks or till the decision on the representation, whichever is earlier, no coercive action shall be taken against the petitioners in pursuance to the impugned demand notice.

Order Date :- 20.4.2017

VKS